

Masters in the Things of War: Rethinking Military Justice during the Thirty Years War*

Lucian Staiano-Daniels[✉]

We know Bernard von Zwemer, flag-bearer in the Saxon army, killed Ludwig von Bissing in Wittenberg on 11 May 1631 because a captain in Zwemer's regiment questioned the witnesses himself.

Bissing was a student at the university at Wittenberg and he hung out with soldiers. The fight started the day before. Zwemer told Bissing, 'Soldiers have to stand watch.' The city bells rang and Bissing responded that students had to follow the bells. These were young men who spent time in groups of young men, conscious of their identities and accustomed to swagger. Zwemer must have been jealous. 'You must be a dog's cunt then', he responded. Eventually they stopped fighting and went to sleep. The next day they fought again and the crowd threw Bissing out of the room.

Down on the front step the bodyguard Albinus Neuman tried to talk him down. 'Junker Bissing, too much has happened to you, let it wait until morning.' But Bissing pounded back up the stairs, looking for a fight. The soldiers tried to hold the door shut—Zwemer threw and broke a glass against it—but Bissing forced his way back into the room so violently the latch broke, leather and wood. Zwemer said Bissing attacked him so quickly he did not have time to draw his sword, 'so I parried with the sheath'. The fight happened fast, and it was messy—at least five drunk men struggling around and over the table in a tiny upstairs room. In three smooth movements Zwemer parried, drew and stabbed Bissing in the chest.

These soldiers were packed one on top of the other in a warren of rooms also occupied by other people, the crowded centre of seventeenth-century Wittenberg. Company surgeon Christian Erhardt was drinking 'in the flag-bearer's host's room with people from his own country' when he heard there was a fight. He arrived in time to open the door onto the aftermath. Muddled with drink, he could not believe what was happening until he looked under the table and saw Bissing, mortally wounded. Erhardt took the sword from Zwemer's hand. 'Von Bissing fell under the table', Zwemer said, then walked past Erhardt and out the broken door.

He almost made it out of the city, but when he came to the checkpoint at the outer door of the Castle Gate, he refused to dismount to be searched. The musketeers there turned him over to squad leader Lorenz Muller, on watch at the Elser Gate. Muller detained Zwemer and called the watch. The checkpoint only learnt later that Muller had

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injured someone and was trying to run. After Zwemer was found, someone brought the company flag from his room, where he was storing it, into his captain's quarters: an honourless man no longer deserved to tend the flag. Ludwig von Bissing died that night at eight.

Hans Schanck, another captain in the same regiment, questioned the witnesses, one of whom was his second-in-command, flag-bearer Wolf Balthasar von Krosowitz. Krosowitz had not had his sword on him when the fight started. He asked his servant to throw it to him through the crowded little room so he could break up the fight, but although he caught it he did not draw it. He told Schanck he could not get to his weapon in time, but he might have frozen. It may have been only because Schanck was his own captain that Krosowitz was able to tell him he blamed himself for Bissing's death.¹

I. Introduction

The practice of early seventeenth-century military justice has not been extensively explored, but the impression provided by analysis of prescriptive legal documents has been central to some views of military modernization. That soldiers were paradigmatic of early modern social disciplining is reinforced by early modern theorists like Justus Lipsius who not only advocated for a well-disciplined standing army but also used soldiers as symbols of the self-discipline and submission to authorities they enjoined from their readers.² Historians have linked increased discipline in late sixteenth and early seventeenth-century armies to a decline in soldiers' social status and have located evidence for both in changes in military law such as Articles of War, the written legal foundation of a regiment.³

Articles of War and other military regulations survive from at least the fifteenth century in the German-speaking world and are well-known sources. Historians have interpreted late medieval central European military jurisprudence as evidence of Landsknechts' independence and high social status.⁴ In this analysis, military trials were not only expressions of the captains' power as independent agents, but also opportunities

¹ Sächsisches Hauptstaatsarchiv Dresden (henceforth SHStAdr) 11237 10796.

² Authors who reference soldiers as objects or symbols of social disciplining include G. Oestreich, *Neostoicism and the Early Modern State* (Cambridge, 1982) and P. Gorski, *The Disciplinary Revolution: Calvinism and the Rise of the State in Early Modern Europe* (Chicago, 2001). Peter Wilson critiques the social disciplining approach to early seventeenth-century military legal history in P. Wilson, 'Early Modern Military Justice', in D. Maffei (ed.), *Tra marte e astrea. Giustizia e giurisdizione militare nell' Europa della prima età moderna (secc. XVI–XVIII)* (Milan, 2012), pp. 43–86. Other discussions of social disciplining include S. Breuer, 'Sozialdisziplinierung: Probleme und Problemverlagerungen eines Konzepts bei Max Weber, Gerhard Oestreich und Michel Foucault', in C. Sachße and F. Tennstedt (eds), *Soziale Sicherheit und soziale Disziplinierung* (Frankfurt/Main, 1986), pp. 45–69; W. Schultze, 'Gerhard Oestreichs Begriff "Sozialdisziplinierung in der frühen Neuzeit"', *Zeitschrift für historische Forschung*, 14 (1987), pp. 265–302; and R. Po-Chia Hsia, *Social Discipline in the Reformation: Central Europe 1550–1750* (New York, 1992).

³ F. Redlich, *The German Military Enterpriser and his Work Force: A Study in European Economic and Social History*, 2 vols (Wiesbaden, 1964/65); P. Burschel, *Söldner in Nordwestdeutschland des 16. und 17. Jahrhunderts* (Göttingen, 1992); E. Swart, 'From "Landsknecht" to "Soldier": The Low German Foot Soldiers of the Low Countries in the Second Half of the Sixteenth Century', *International Review of Social History*, 51 (2006), pp. 75–92.

⁴ W. Beck, *Die ältesten Artikelsbriefe für das deutsche Fußvolk: ihre Vorläufer und Quellen und die Entwicklung bis zum Jahre 1519* (Munich, 1908); R. Moeller, *Das Regiment der Landsknechte: Untersuchungen zur Verfassung, Recht und Selbstverständnis in deutschen Söldnerheeren des 16. Jahrhunderts* (Wiesbaden, 1976); Burschel, *Söldner in Nordwestdeutschland*, pp. 13, 131.

for common soldiers to participate in the administration of justice, since soldiers sat on tribunals. Gradually, common soldiers supposedly lost that judicial agency, until by the seventeenth century they no longer had the right to participate in the administration of justice.⁵ In his detailed study of the daily lives of early modern mercenaries, Peter Burschel anatomized the ways their social status dropped circa 1600. As part of this shift, he argued, they were no longer allowed to take part in military justice or try their comrades. Regimental tribunals were replaced with legal officials who were foreign to the regiment. 'Like the Landsknecht, the independent, untutored military courts also disappeared from the sixteenth to the seventeenth century.'⁶

This argument may describe what authorities and military theorists wanted to accomplish, but it does not tell the whole story. The ordinary practice of military law reveals that common soldiers retained an active role in the exercise of justice in their own units, that military courts remained largely 'untutored' during wartime and that even laws that were strict on paper could be implemented in various ways in practice. Instead of breaking with the past, military justice as practised exhibited continuity with earlier central European military jurisprudence, modified by changes in custom and written law. The history of criminality (*Kriminalitätsgeschichte*) in non-military society in early modern central Europe has moved from a focus on disciplining from above to the strategies and motivations of subordinate groups and their interactions with their superiors.⁷ A historian of seventeenth-century Swedish military justice advocates attention be directed at the ways edicts were implemented in real life as an alternative to the social-disciplining approach to early modern military law.⁸ Similarly, this article examines everyday military legal practice in the early seventeenth century through close reading of ordinary legal paperwork generated during the Thirty Years War by units from electoral Saxony.

Saxony was a wealthy power with a medium-sized army, but the Electorate has been poorly studied.⁹ However, Saxon archival records from this war are good. Although this electorate was unusually decentralized during the Thirty Years War compared not only to Sweden but also to powers like Bavaria, its rich documentation makes Saxony a useful pointer to what life might have been like in less well documented armies. This article focuses on three trials held in Dietrich von Starschedel the Younger's Free Company in 1624 and 1625. Papers from these trials preserve witness statements, interrogations and verdicts. They are also autograph foul copies which include the signatures of everyone on the tribunals, both common soldiers and officers (see Figs 1 and 2). Since trial reports and witness statements often contain material extraneous to the cases

⁵Swart, 'From "Landsknecht" to "Soldier"', p. 83.

⁶Burschel, *Söldner in Nordwestdeutschland*, pp. 143–4.

⁷G. Schwerhoff, 'Devianz in der alteuropäischen Gesellschaft: Umriss einer historischen Kriminalforschung', *Zeitschrift für historische Forschung*, 19 (1992), pp. 385–414, here p. 413.

⁸H. Berg, 'Administering Justice and Bending the Legal Code: The Embattled Implementation of the Swedish Articles of War', in J. Nowosadtko and D. Klippel (eds), *Militärrecht der Frühen Neuzeit* (Münster, 2016), pp. 227–49, here p. 230. See also A. Landwehr, *Policey im Alltag: die Implementation frühneuzeitlicher Policyordnungen in Leonberg* (Frankfurt/Main, 1999).

⁹D. Croxton, *The Last Christian Peace: The Peace of Westphalia as a Baroque Event* (New York, 2017); L. Staiano-Daniels, 'Determining Early Modern Army Strength: The Case of Electoral Saxony', *Journal of Military History*, 80, 4 (2019), pp. 1001–20.

Wolff Luyt von
~~Christoph Luyt~~
 Peter Luyt von
 Jereinas Gyselbarth Jolt webell
 Jans Luyt von
 Jans Francit Jansin webell
 Jans Luyt von
 Michel Weber
 Wentzel Goffman
 Siegmund Lause
 Andreas Ditzel
 Georg Lödingen.

gefangen.

Thomas Imball
 Christoff Pfeiffer.
 Jans Luyt von
 Michel Ditzel
 Christoff Ditzel
 Michel Ditzel.

Singulstern.

Thomas Stein
 Jans Luyt von
 Matthes Luyt von
 Michel Luyt von
 Christoff Luyt von
 Christoff Luyt von.

Musikanten.

Figure 1: Original signature page from the tribunal which heard the Kaltoffen/Sontag case. Each participant in the trials held in Dietrich von Starschedel's free company signed his name at the end of the transcripts with his own hand. On the basis of documents with soldiers' signatures, I believe ordinary soldiers were more literate than historians have assumed.

Source: Sächsisches Staatsarchiv, Hauptstaatsarchiv Dresden, 10024 Geheimer Rat (Geheimes Archiv) Loc. 9121/5, Entleibungs Akten Balthasar Kaltoffens an Niclas Sontagen und Jonas Beckens an Georg Stöckicht, Stadtknechten Zu Triptis, Beide Thätern under Hauptmann Starschedels Fendel, Anno 1624, p. 17.

The Mansfeld documents present a regiment's daily functioning over its entire lifespan, from before its mustering in to after its collapse.

Early modern military law in German-speaking central Europe was formed by a loose body of norms and customs in addition to written codes and contracts. Military and civilian law both developed out of late medieval German precedent.¹¹ They may have influenced each other. Some old Articles of War, for example, assume prior familiarity with law: 'Item, if it were that anyone in our army steal from another, we want to let him be punished as is the law for a thief [*Diebsrecht*]'—someone already knew what that was.¹² Burschel has argued that military justice changed as part of growing standardization and disciplining within armies which developed gradually for two hundred years and accelerated during the seventeenth century.¹³ Paralleling developments elsewhere in the German-speaking world, the Articles of War he collected showed increasing concern with soldiers' morality and an increasing desire on the part of elites to police their behaviour.¹⁴ But the Mansfeld Regiment's articles are few and simple. Only one deals with the soldiers' interior mental state: article 3 tells the soldiers to 'ask for' Philip II's victory 'from above from their hearts'.¹⁵ The developments Burschel noticed probably took place primarily after the war.¹⁶ Individuals also interacted with formal precepts in different ways, including ignoring them. The regiments stationed in the Tyrol that Martin Schennach studied did not habitually carry out the severe punishments itemized in Articles of War.¹⁷ Gustavus Adolphus's Articles of War are famous as embodiments of reforms like Lipsius's, but he drafted them and revised them repeatedly until his death as part of an attempt to bring his officers under his control—when trying cases, Swedish colonels implemented these laws as they saw fit.¹⁸

Like civilian law, military law relied on custom and written precedent. Legal officials may or may not have been formally educated but many of them did not slack: when a flag-bearer in the Mansfeld Regiment deserted, the provost cited not only the regiment's own Articles of War but also Articles of War 'given in the City of Vienna, 13 November Ao. 1566'. He cited his source: 'In the Teutschen Key: Kriegs Recht *Lib. Imo. Fol. 16*'. Mattheus Steiner of the Mansfeld Regiment reproduced this citation verbatim.¹⁹ He and the regimental provost were explicitly concerned with past practice: the statement hints at a living military legal tradition both written and unwritten, which may have been more compendious and varied than the military legal texts we know about already, like Fronsberger's *Von Kayserlichem Kriegsbrechten* (1563) or the influential 1570 Imperial Articles of War.²⁰ Enacting justice in an early seventeenth-century

¹¹ Wilson, 'Early Modern Military Justice', p. 47.

¹² Field ordinances of Albrecht Achilles, 1460, in Beck, *Die ältesten Artikelsbriefe*, p. 47.

¹³ Burschel, *Söldner in Nordwestdeutschland*, p. 132.

¹⁴ *Ibid.*, pp. 136–7.

¹⁵ SHStADr 10024 9119/38, XXIIIr.

¹⁶ Burschel, *Söldner in Nordwestdeutschland*, pp. 139–40.

¹⁷ M. Schennach, 'Lokale Obrigkeiten und Soldaten. Militärgerichtsbarkeit in Tirol in der ersten Hälfte des 17. Jahrhunderts', in A. Griesebner, M. Scheutz and H. Weigl, *Justiz und Gerechtigkeit: historische Beiträge (16.–19. Jahrhundert)* (Innsbruck, 2002), pp. 199–218, here p. 199.

¹⁸ Berg, 'Administering Justice'.

¹⁹ SHStADr 10024 9739/6, p. 153.

²⁰ Wilson, 'Early Modern Military Justice', pp. 51–2.

regiment required real physical labour: someone had to haul the book in which that source was recorded from Dresden through Switzerland to Lombardy.

Historians have argued that sixteenth-century soldiers in the German-speaking world were proud of their law and this association contributed to their consciousness of themselves as a group.²¹ In the mid-sixteenth century Reinhard zu Solms wrote,

The war-people or infantry / have among them the best justice and war ordinances like no other nation / because they have permanent / orderly justice / war ordinances and articles of war ... You've got to ask / what other nation has such justice or maintains such regulations [*regiment*]?²²

Seventeenth-century soldiers also thought about their own law. Their commitment to it may have outweighed their loyalty to whatever master they served. One of the most unequivocal expressions of this attitude came from Feldwebel Johann Masson, an NCO of the Mansfeld Regiment. A Frenchman, Masson was from the same nation as his regiment's enemies. Yet when he tried to separate the fighters in a brawl between peasants and soldiers and one of his subordinates insulted him for his trouble, he spat that he could not bear that kind of talk, Steiner recorded, 'when he's doing this to impart the praiseworthy imperial military justice to [his subordinates] completely and to trust in it'.²³

Solms said soldiers were well-ordered because they had 'regiment'. 'Regiment' meant a military body composed of more than one company and headed by a colonel, but it also meant rules, system, regulation or government. To bring something or someone 'before the regiment' meant to go to trial. 'Regiment' also meant a rod of office, a short, thick wooden rod about a yard long, sometimes painted red or green or inlaid with mother-of-pearl. In the Mansfeld Regiment, officers down to the level of at least lieutenant carried such rods. These 'regiments' symbolized the authority granted to these officers by the law: the reason we know who carried them in the Mansfeld Regiment is that their bearers hit people with them in fights. After one of the regiment's captains died, a brawl broke out between his muster-writer and some other officers over how much money he had owed them and what would happen to the company, and a lieutenant hit the muster-writer 'with the regiment'.²⁴ The muster-writer was his subordinate—you hit your equals or your superiors with your hands or a weapon.

Regiments or armies were similar to other independent jurisdictions within the Holy Roman Empire's legally pluralist society.²⁵ In the early seventeenth century a Saxon regiment was a legal entity which had jurisdiction over its own members but was ultimately responsible to the elector of Saxony. Free companies—companies that were raised on their own and owned by a colonel—appear to have been semi-independent if they had been incorporated into a regiment, often trying their own members but still under the supervision of regimental legal officers. Judgement was passed by the

²¹ Moeller, *Das Regiment der Landsknechte*, p. 197.

²² 'Die kriegßleut oder volck zu fuß / haben vnder jnen auch die beste justitien vnd kriegsordnung als kein nation / dann sie haben ein stettige / ordentliche justitien / kriegßordnungen vnd artikelsbriefe ... Ist zu fragen / welche ander nation solche justitien haben noch regiment halten?' Reinhard zu Solms and Konrad von Boyneburg, *Kriegsordnungen* (1559/1560), book 1, p. 5.

²³ SHStAdR 10024 9739/6, pp. 2–3.

²⁴ SHStAdR 10024 9119/38, p. 171.

²⁵ J. Griffiths, 'What is Legal Pluralism?', *Journal of Legal Pluralism and Unofficial Law*, 24 (1986), pp. 1–55; R. J. Ross and P. Stern, 'Reconstructing Early Modern Notions of Legal Pluralism', in L. Bendon and R. J. Ross (eds), *Legal Pluralism and Empires, 1500–1850* (New York, 2013), pp. 109–42.

tribunal members in the name of the colonel: since Wolf von Mansfeld spent most of his regiment's tour on his estates or in Leipzig, his lieutenant-colonels reviewed cases and had the power to pardon. The Mansfeld Regiment sometimes ran legal issues past the governor of Milan but much of the time it governed itself; Saxon units in the Saxon army conferred with the elector of Saxony or other officials. In 1634, at a time when that regiment had no bailiff, Captain Hans Christoff von Dransdorff of the Löser Regiment accidentally shot a cavalryman and was stabbed in retaliation. They sent for a general bailiff to question the witnesses, but the case went nowhere because the boy who stabbed von Dransdorff had already ridden home.²⁶ The Saxon example may not be universal. Imperial-aligned regiments in the Tyrol seem to have been more closely integrated with their authorities: in serious cases the privy council issued detailed instructions for trials, and the local ruler, the regent or the privy council could intervene. This relationship was easier for Tyrolean units than for Spanish or imperial troops in the region, whose heads of state were in Madrid, Prague, or Vienna.²⁷

Some fifteenth- and sixteenth-century German-language field ordinances and Articles of War stipulated legal offices, procedures and organizations. The provost brought suit if there were not two quarrelling parties, and his assistants were responsible for daily law enforcement. Flag-bearers helped convene trials, may have mediated minor disputes among the men and traditionally were supposed to plead the men's case. Field ordinances from this period already imply an organized system of regulation by paperwork: soldiers needed passes or stamped letters to enter or leave a fortified place or to travel.²⁸ The seventeenth-century trials whose accounts I have read were presided over by a bailiff. In the Mansfeld Regiment this role was held by Mattheus Steiner, the regimental bailiff and secretary. As both bailiff and secretary he recorded the regimental paperwork and fulfilled some functions of a civilian judge: he and the provost presided over tribunals and he helped decide the final verdict. Steiner also conducted interrogations. Along with the regimental surgeon and other witnesses, he examined bodies in cases of suspicious death—like regimental justice in general, forensic medicine was scrupulously carried out. Mattheus Steiner took his job seriously, and unlike civilian notaries and lawyers did not charge for his services. He also investigated crimes. When the lieutenant-colonel of infantry stabbed his wife to death, Steiner acted as his legal representative and travelled from the infantry's quarters in Busto Arsizio to Milan to find and question witnesses. Were officers who were not legal officials also expected to be part-time investigators, like Captain Hans Schanck? Steiner had been a common pikeman and then a company muster-writer before he joined the Mansfeld Regiment, but his background before 1620 is unknown.²⁹ One explanation for common soldiers' ready participation in justice within their units may be that at least some of the administrators of this justice had once been like them.

²⁶ SHStAdr 11237 10796/19.

²⁷ Schennach, 'Lokale Obrigkeiten und Soldaten', p. 204.

²⁸ Oath and ordinances for the garrison of a stronghold, second half of the fifteenth century, Beck, *Die ältesten Artikelsbriefe*, p. 50. Field ordinance for Tyrol drafted by Leonhard von Völs, 1499, *ibid.*, p. 60. Oath and ordinances for march to Rome, 1507, *ibid.*, p. 79. Articles of War for the Swabian League, early sixteenth century, *ibid.*, p. 86. Articles of War c.1510, *ibid.*, p. 115.

²⁹ L. Staiano-Daniels, 'A Brief Introduction to Seventeenth-Century Military Manuscripts and Military Literacy', *Manuscript Studies*, 5, 1 (2020), pp. 142–63, here p. 145.

Rather than disciplining the soldiers, much of the daily legal activity of the regiment managed disputes among them. Soldiers brawled and insulted one another. They stole from civilians but within the regiment there was more fighting than theft, and when one soldier or officer stole from another, search warrants were not served: victim and perpetrator were already surrounded by witnesses and there were no permanent dwellings to search. Personal honour was vitally important throughout early modern society, and both soldiers and civilian men were willing to defend their honour with potentially lethal violence.³⁰ This was a masculine society, although not a wholly male one. Women rarely testified in Mansfeld justice and when both men and women brawled, the men fought on behalf of their female partners and testified on their behalf. Regimental justice investigated the survivors of soldiers' fights and mediated their arguments. In addition to killing one another, the Mansfelders were highly litigious. Common soldiers and officers sued one another readily if they felt they had been demeaned. Considering the size of early seventeenth-century units (a full-strength infantry regiment in the 1620s comprised about 3,000 men; a company 314) there were probably more legal personnel per capita in a regiment or company than a city. Members of the military community were familiar with the legal process: they participated in governance. When Martin Seyfried Deckert shot himself in 1654, one of the men who found him told the other he 'definitely wanted to see where he had shot himself here so I can report it', and they examined the body where it lay.³¹

II. Two Trials in Dietrich von Starschedel the Younger's Free Company

Whatever a regiment or army's Articles of War said, we should also pay attention to the daily practice of justice, since members of the military community implemented justice in many ways. Transcripts of trials held in a free company belonging to the Saxon colonel Dietrich von Starschedel the Younger are some of the most detailed I have sampled. Thick descriptions of these trials give an impression of daily life in this company as well as its tribunals. Military justice was variable, flexible and offered scope for common soldiers to participate, for although pressure on less-powerful tribunal members to reach consensus can be detected, subordinate members of this company also had the ability to make their desires known.

On 29 September 1624 Balthasar (Baltzer) Kaltoffen and Nicholas (Nicol) Sontag, squad mates and pikemen (*Spieß-gesellen*), were drinking together in a tavern in Neustadt on the Orla, where they were quartered. After imbibing about a quart of wine, Sontag asked Kaltoffen for his sword, as he wanted to exchange swords as a pledge of brotherhood. Kaltoffen refused. 'I paid for that sword', he said. 'It's for defending my life.' The two stood up together, left the tavern and fought outside. Sontag was killed.³²

This case was tried twice. The first trial took place in Dresden on 21 October 1624 and acquitted Kaltoffen on grounds of self-defence. On 10 November a new

³⁰K. Schreiner and G. Schwerhoff, *Verletzte Ehre: Ehrkonflikte in Gesellschaften des Mittelalters und der frühen Neuzeit* (Cologne, 1998); S. Carroll, *Blood and Violence in Early Modern France* (Oxford, 2006); P. Spierenburg, *A History of Murder: Personal Violence in Europe from the Middle Ages to the Present* (Cambridge, 2008), pp. 9–11.

³¹SHStAdr 10024 9121/14, doc. 2.

³²SHStAdr 10024 9121/5, 1–17.

tribunal was assembled to review the case at the behest of the elector of Saxony and the prior recommendation of the company bailiff, Heinrich Müller. This tribunal had twenty-four men on it: six officers, six squad leaders, six pikemen and six musketeers, so 75 per cent were common soldiers. Almost all its members were from the same company as Kaltoffen and Sontag. The papers were big and brown, coarse to the touch. The scribe's handwriting deteriorated as the trial continued and his hand became tired. Each participant signed his name at the end of the document with his own hand (see Fig. 1).

The members of the tribunal gave their decisions according to their rank and the honour of their roles: officers first, then squad leaders, pikemen and musketeers. The officers gave their decisions individually but the common soldiers on the tribunal made their decisions in groups. The reasoning varied by rank and position. Whether as a calculated attempt to curry favour or because their positions placed them in more contact with superiors, the officers emphasized the ties of obligation binding them to their sovereign. Sontag gave Kaltoffen 'sufficient cause to take him outside', they said, since Sontag had wanted to take Kaltoffen's sword, 'which he bore in order to serve Your Electoral Majesty' and 'for defending his life'. In contrast, the squad leaders mentioned the political world outside their regiment only vaguely: for them Kaltoffen was defending himself because Sontag 'wanted to wrest from his side the weapon with which he receives money from the lord'. This was a stock phrase for mercenary service: the identity of that lord was vaguer than the reference to money. The pikemen valorized a soldier's place in the world without mentioning any lord at all, elector of Saxony or otherwise. For them, 'because Balthasar Kaltoffen defended his honour and good name' he 'acted with right', even though he 'had to use a weapon to defend himself'. The musketeers concurred, but also said Kaltoffen had been forced to fight.³³

This was a formal trial. There are no remainders of the romanticized *Spießgericht*, communal Landsknecht justice, in the documents relating to the cases in this article. But the tribunal was made up of soldiers and officers. Numerically, it was dominated by common soldiers, fifteen out of twenty. The participants' signatures were organized into neat blocks, in the same order that their decisions were recorded; probably in the same order they delivered their decisions out loud. This was probably the same order they sat in. In earlier military manuals, tribunal members sit by order of rank, and men with the same rank sort precedence by age.³⁴ This was not an egalitarian society. Kaltoffen was acquitted unanimously: even though he was too drunk to tell Sontag wanted to exchange swords with him, his perception that Sontag wanted his sword was enough to justify lethal retaliation. In the field ordinances of Albrecht Achilles of 1460, if anyone takes a weapon from anyone else, the offender should be beheaded; in field ordinances from 1499, he should lose a hand.³⁵

A month later this tribunal tried musketeers Jonas Beck, Melchior Schröter, Maz Japzsch and Hans Rümpler for leaving the company without an overnight pass, precipitating a brawl and killing a man. On 20 October 1624 Jonas Beck and his squad mates had left their quarters in Kronberg and walked to Leibsdorf to visit Beck's old

³³ SHStAdr 10024 9121/5, 16r–17r.

³⁴ Moeller, *Das Regiment der Landsknechte*, p. 215.

³⁵ Beck, *Die ältesten Artikelsbriefe*, pp. 46–7, 60.

company. It had been Beck's idea: he had come to their room and asked Schröter and Japzsch if they wanted to go with him. He stood 'in front of the bed' to do so: on a morning in late October, Schröter and Japzsch would probably have been sitting or lying in one bed and keeping each other warm.³⁶ Rümpler was in the market when Beck 'asked him if he'd like to come out and hang out with him'.³⁷ The other three wondered if it was right to leave, but Beck told Schröter and Japzsch he had the lieutenant's permission: not only was his pass prepared, he said, he had received a glove from the lieutenant, an extension of his superior's hand and token of the trust he allegedly had in Beck. Rümpler must have wondered if Beck wanted to desert, as Beck told him that 'because he was content, he would come back again', taking for granted both his ability to walk off if he felt like it and his right to do it if he was not satisfied with life in this company.

The rest of the squad did not know this, but Beck's pass was only for that day. He was hoping to travel to his old company on that pass, then get another pass from his old lieutenant and travel back on it, possibly staying out overnight. Beck was probably less experienced than his higher-paid friends (he made eight gulden a month to Rümpler's ten and Japzsch's nine; Schröter made seven, which was the norm).³⁸ He was probably younger too: he had been a drummer in another company in 1621/22 and drummers were usually teenagers, which means Beck was probably in his early twenties by late 1624, if that.³⁹ But he seems to have had a more proactive personality than the rest of his squad.

On their way back from Leibsdorf, the four stopped at the home of Nicol Hetzer, a smith and bar-keeper in Triptis. There they drank some beer and ate two carp, which they had caught and brought with them for their host to cook. A *Stadtknecht*, a city bailiff, came into the place speaking Polish to them, then sat down at the table next to Beck and asked him if he spoke Polish. When Beck answered no, he left.⁴⁰ Later, Beck and Schröter went outside, 'set upon each other with their fists, but intending no harm', then came back into the tavern, settled their bill and went out again to fight some more, under the light where they could see. They came back in and 'shouted for joy'. Some witnesses said they had their swords out. At some point Hetzer called the city judge, who arrived with his retinue. The defendants did not agree how or when it happened, but a mob of town-dwellers gathered, some with clubs: 'They came with big trees and other weapons to fall upon him and beat him', Beck was recorded as saying.⁴¹ The soldiers had not been watching Triptis, but Triptis had been watching them.

The testimony was fragmented, contradictory, told by people who were in different places. The townspeople and the soldiers described each other as frightening, hostile forces; the judge who came upon the brawl remembered telling the soldiers he would fine them. Japzsch and Rümpler, who were attempting to barricade themselves inside Hetzer's place, barely saw anything happen; they remembered the event primarily as a town full of people attacking them. The defendants were badly beaten. One of the

³⁶ SHStAdr 10024 9121/5, 44v.

³⁷ SHStAdr 10024 9121/5, 44v–45r.

³⁸ SHStAdr 11237 10840/7, p. 8.

³⁹ *ibid.*

⁴⁰ SHStAdr 10024 9121/5, 18v.

⁴¹ SHStAdr 10024 9121/5, 19r.

judge's men hit Beck's rapier with a war hammer, snapping it and wounding Beck in the hand. 'By God's sacraments, you've wounded me', said Beck and ran him through with the broken sword.⁴² 'The short guy stabbed me!', yelled the judge's man. 'I've said my part.' He took three full steps into the entryway of the house of Paul Hahn, the beadle, to shield himself, but did not make it to the door.⁴³ Georg Hetzer did not see him fall, but he told the tribunal what it looked like to watch a man die: 'At that he gave no word more and his face was different.'⁴⁴ When the mob came to arrest Beck, the rest of his squad vowed to stay with him and protect him; they clung to one another and the civilians ripped him out of their arms.⁴⁵

The defendants and the witnesses were questioned several times. Only during Nicol Hetzer's interrogation was Maz Japzsch's full name, Mattheus, recorded; everyone in his company, including the officers, called him Maz, also spelled Matz. Some of the tribunal participants were sharp thinkers. The defendants 'might object that they wanted to come back to quarters at the right time' before the fight broke out, but 'they all know that after 7 p.m. when they began their lightminded screwing around they would not have been able to get through the gate', said Führer Caspar Richter: the city gates shut at seven, which means the defendants were also looking at a charge for deliberately staying out overnight without passes.⁴⁶ During the fight, when the judge and his retinue had run out to stop Beck and Schröter from fighting, Beck had shouted, 'What are you asking, we are soldiers, we have the power to call each other out.'⁴⁷ This fight was just for fun, but Beck believed the right ('power') to challenge and fight other soldiers was part of upholding his honour as a soldier. Heinrich Müller was not impressed: 'Where had you heard that soldiers are free to lead one another out and fight with one another as often as they please?'⁴⁸ He would have preferred military discipline to have been kept instead.

On 10 January 1625 the tribunal sentenced Beck to death for murder and signed the rough brown paper (see Fig. 2). Sixteen out of twenty-three members of this tribunal, 70 per cent, were common soldiers. Although Heinrich Müller questioned defendants and exchanged letters with the elector of Saxony, no outside legal experts were involved in either case. The tribunal Dietrich von Starschedel the Younger's Free Company convened in response to the Triptis case was almost identical to the tribunal for the Kaltoffen/Sontag case. Cross-referencing the names and the company with existing muster-roll records establishes that both low-paid and more highly paid men were represented in both tribunals.

Tribunals varied by number and status of the soldiers and officers participating. There seems to have been no standard form for military tribunals in Saxon units in the 1620s and 1630s. The same is true for contemporary military tribunals in the Tyrol.⁴⁹ The first tribunal convened in the Kaltoffen/Sontag case had seventeen men on it,

⁴² SHStAdr 10024 9121/5, 22v.

⁴³ SHStAdr 10024 9121/5, 38v.

⁴⁴ SHStAdr 10024 9121/5, 22r.

⁴⁵ SHStAdr 10024 9121/5, 48r–48v.

⁴⁶ SHStAdr 10024 9121/5, 52v.

⁴⁷ SHStAdr 10024 9121/5, 23r–v.

⁴⁸ SHStAdr 10024 9121/5, 27r.

⁴⁹ Schennach, 'Lokale Obrigkeiten und Soldaten', p. 213.

eight officers and nine common soldiers. The other two Starschedel company tribunals had twenty-four members, 75 per cent of whom were common soldiers. When Bernard von Zwemer was acquitted of killing Ludwig von Bissing on grounds of self-defence, Bissing's father petitioned Zwemer's regiment to rehear the case. The tribunal that heard this request was made up of seventeen men; nine were common soldiers, including four soldiers identified as *Gerichtsgeschworene*, soldiers 'sworn to the court' who served on tribunals.⁵⁰ These men were probably common soldiers with some defined office on the tribunal, but like the *Gemein rechtsprecher* in a 1499 field ordinance, it is difficult to tell who they were or what their status was.⁵¹ By the 1630s, Saxon muster rolls record *Gerichtsgeschworene*, which suggests that in that decade they served repeatedly. Earlier military tribunals also varied. A source from the coast of the North Sea around 1500 recorded one bailiff, one scribe, one sergeant (*rijchtwibel*) and eight tribunal members (*ordemaker*).⁵² A Swabian League ordinance from early 1519 says the bailiff should assemble six 'Gerichtsleut' from the nobility and six from the common men.⁵³

Most Mansfeld trials did not specify who was on their tribunals apart from the bailiff/secretary, provost, captains, lieutenants, flag-bearers, feldwebels 'and other assessors of the law' (*Beysizern des Rechtens*). The only cases in that regiment where tribunal members were counted and specified involved important regimental personnel: in one case, Lieutenant-Colonel Theodore Camargo stabbed his wife to death; in the other, a lieutenant got into a fight with his captain. The tribunals that heard their cases were made up of personnel from other regiments in Spanish service in the area, both to collect enough officers and to avoid the appearance of impropriety. They had twenty-five participants each, and they were top heavy: the tribunal that tried Camargo had eight common soldiers, and the one that tried the lieutenant only six. But as a lieutenant-colonel and a lieutenant, both defendants outranked most members of both juries. The willingness to try higher officers accords with the late sixteenth-century remark of Junghans von der Olnitz that a colonel or lieutenant-colonel could be 'hanged from a branch / as much as a common soldier / if he deserves it'. Camargo's trial had been rigged, however, from the beginning; Mansfeld believed his presence was essential.⁵⁴

Like members of village councils in contemporary Tuscany or men who served on local juries in contemporary Sussex, most members of early seventeenth-century military tribunals did not have formal legal educations.⁵⁵ When Müller wrote to the elector of Saxony about the kind of man a military tribunal required, he said he should be 'an experienced master in the things of war'.⁵⁶ Although he did not say 'literate', everyone in both Starschedel cases could sign his name. One of the *Gerichtsgeschworene* who heard Bissing's father's request was a veteran who can be tracked through the Saxon army because of his distinctive name, Hans Catherine (see Fig. 3). Catherine was

⁵⁰ SHStAdr 11237 10796.

⁵¹ Moeller, *Das Regiment der Landsknechte*, p. 198.

⁵² *Ibid.*

⁵³ Beck, *Die ältesten Artikelsbriefe*, p. 95.

⁵⁴ Moeller, *Das Regiment der Landsknechte*, pp. 204–5.

⁵⁵ C. Herrup, *The Common Peace: Participation and the Criminal Law in Seventeenth Century England* (Cambridge, 1989); G. Hanlon, 'Justice in the Age of Lordship: A Feudal Court in Tuscany during the Medici Era (1619–66)', *Sixteenth Century Journal*, 53, 4 (2004), pp. 1005–33, here p. 1009.

⁵⁶ SHStAdr 10024 9121/5, 3r.

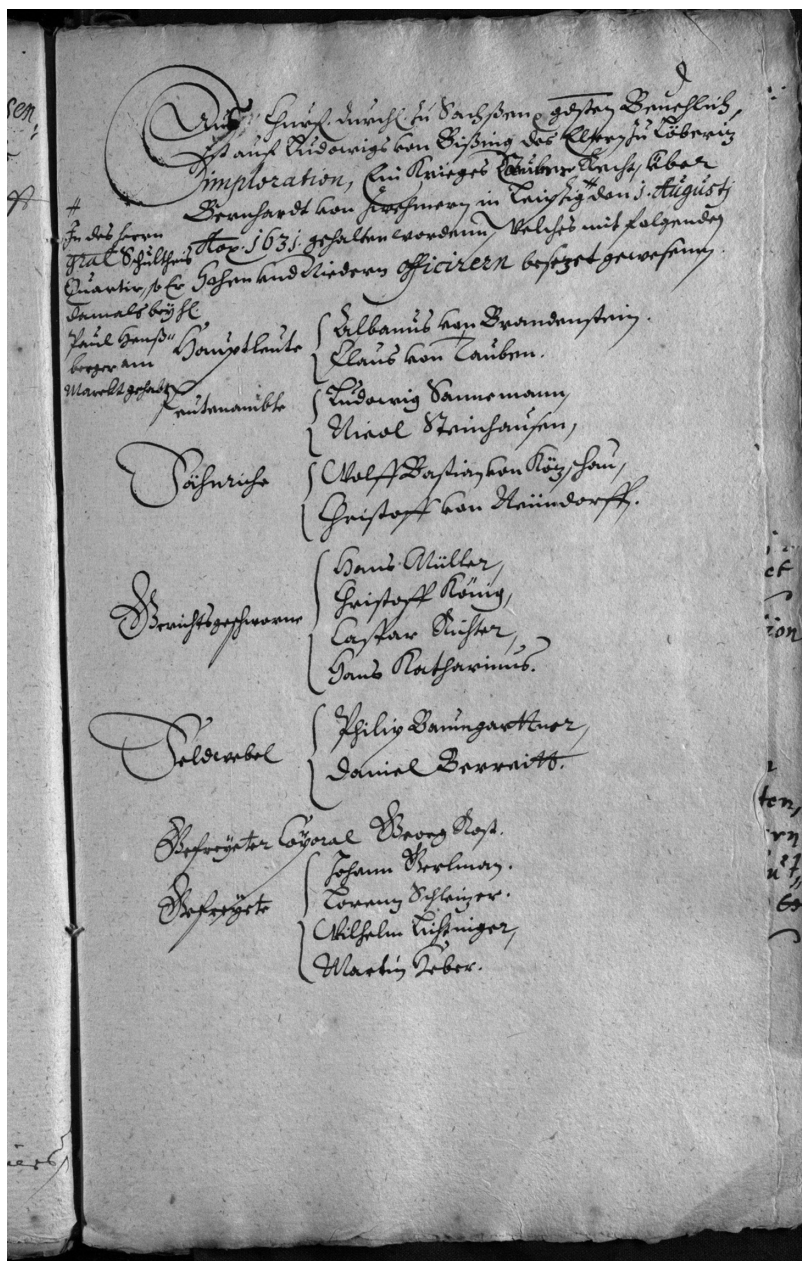


Figure 3: Fair copy of signature page from the military tribunal which heard the Bissing/Zwemer case. In the original, these names would have been signatures.

Source: Sächsisches Staatsarchiv, Hauptstaatsarchiv Dresden, 1127 Geheimes Kriegsratskollegium, Loc.1076, *Acta Den Zu Wittemberg entleibten Ludwig von Bissing Studiosum und Bernhardt von Zwehmern Fähnrichen betreffende. Angefangen in Wittembergk den 8. Juni Ao. 1631*, p. 59.

a musketeer who may appear in two rolls, one in 1619 and one in 1623.⁵⁷ By 1631 Hans Catherine might have been a soldier for at least twelve years: other *Gerichtsgeschworene* may have been experienced common soldiers like him. The mercenary and diarist Peter Hagendorf spent some time as a *Gerichtsgeschworener*, and he was both literate and highly experienced; he was a soldier for the entire war.⁵⁸ He eventually became a regimental provost. After the war Hagendorf became a judge in his hometown. His oldest surviving child, Melchior Christoff, whom he put through school during the last years of the war, became a lawyer.⁵⁹

Formally or informally, powerful members of military tribunals may have influenced others to come up with desirable verdicts, but common soldiers also had an active role in the legal process. In the Triptis case the defendants argued with the court and intervened in the proceedings. Müller wrote to the elector that the defendants

are very disputatious about the articles [a series of questions he put to them] because they will not stand for all they have been charged with, and in all points they agree, so I don't know what to do against them. The townspeople, the judge, and everyone that was at the fight must also be heard under oath, or else unbiased and reasonable people [here, as in all cases where a soldier uses the term, *people* means members of the military community] will take this thing in a hostile manner.

Müller questioned the defendants despite their objections, but he also questioned the civilian witnesses under oath about the brawl, as the defendants wanted.⁶⁰

After Beck was sentenced, 'the soldiers of the praiseworthy Free Company ... Generally and One By One' wrote to the elector of Saxony a letter in which they appealed to his mercy, invoked 'the tearful pleas of the incarcerated', said Our Lady had preserved the company from condemning anyone to death so far, and blamed the incident on 'hasty human weakness' and Beck's being drunk. Starschedel the Younger also asked the elector to pardon Beck, since 'my entire company' wanted 'an amelioration of the sentence' and 'I don't want to refuse them this'.⁶¹ Beneath the consensus presented by the written record, tension circulated through the company.

Starschedel had not received any money to pay his troops. By November 1624 they were pawning their clothes to buy food from his sutlers. 'We are getting beer for the soldiers on credit', he wrote. 'Because of the inability of the council and the entire population of citizens [they were probably objecting to having money extorted out of them], we can never give them cash in hand.'⁶² While cash was not forthcoming, Starschedel had to keep his soldiers as satisfied as possible. Things were rocky for this company in general; on 31 March 1625, a total of 186 soldiers were paid off early and dismissed, 59 per cent of the full complement of 314.⁶³

Starschedel the Younger's Free Company had to balance the competing interests of the participants in these trials. Soldiers did things to preserve their honour that

⁵⁷ Hans Catherine from Wolsen in Hesse, SHStAdr 11237 10839/6. Hans Katherina from Mühlhausen, SHStAdr 11237 10840/12.

⁵⁸ P. Hagendorf, *Ein Söldnerleben im Dreißigjährigen Krieg: eine Quelle zur Sozialgeschichte*, ed. Jan Peters (Berlin, 1993), p. 97.

⁵⁹ H. Medick, *Der Dreißigjährige Krieg: Zeugnisse vom Leben mit Gewalt* (Göttingen, 2018), pp. 115–22.

⁶⁰ SHStAdr 10024 9121/5, 31r–v.

⁶¹ SHStAdr 10024 9121/5, 61v.

⁶² SHStAdr 10024 9121/5, 14v.

⁶³ SHStAdr 11237 10840/7, p. 8.

landed them in front of a tribunal, but tribunal members were sympathetic to the demands of honour and acquitted them. When they handled killing, these soldiers and officers negotiated with one another and with non-soldiers, begged for mercy and were merciful, employed their judgement and thought in ways shaped by custom—in this case in attitudes towards male violence and the violence of soldiers. Justice could not function without negotiation between superiors and subordinates: while this was true everywhere, military units would collapse without the at least grudging cooperation of the common soldiers. Starschedel depended all the more on his men's good will as long as he could not pay them.

In the end, the Elector of Saxony pardoned Beck and he was allowed to live. But though the elector ruled he should be expelled from Dietrich von Starschedel the Younger's Free Company, he was one of the smaller number of soldiers who were not: when the troops were mustered for dismissal at the end of March, he and five others (including another Nicol Sontag, probably a relative of the man Baltzer Kaltoffen killed) were already gone.⁶⁴ As he had declared the previous October, Jonas Beck stayed as long as he was content.

III. Punishment and Torture

If we examine only prescriptive documents, it could seem that military justice was especially willing to kill—a conclusion some German historians have reached.⁶⁵ But a systematic look at the cases brought before the Mansfeld Regiment, breaking them down by punishment for capital and non-capital cases, reveals that the death sentence was not common in this unit, as can be seen from Figure 4. The numbers in the table do not add up to the total number of men in the regiment who were punished for crime. Some soldiers received more than one punishment: when he shot his best friend by accident, the flag-bearer Hieronymus Sebastian Schutze was made to swear an oath that he had not meant to do so, confined to quarters and deprived of his office for nine days—his case appears on this list three times. Mediations are not included in this list, nor are cases that were dropped or where the accused received no punishment.

Most soldiers in the Mansfeld Regiment were not sentenced to death, and most soldiers who were sentenced to death were pardoned. The most common crime for which soldiers were condemned to death was murder, but even if a soldier killed someone without cause, he was likely to be pardoned: of the fifteen soldiers who were condemned to death while the Mansfeld Regiment was active, only four were actually executed. In one case, soldiers fighting in front of the place where the main watch had been set were condemned to death even though nobody had been killed 'because such blows and fights have become far too common'. They were pardoned quickly: the aim had probably been to intimidate brawlers.⁶⁶ The man who was beheaded killed another soldier in a fight. Unlike other soldiers convicted of similar crimes and pardoned,

⁶⁴ SHStAdr 10024 9121/5, 63v; SHStAdr 11237 10840/7, p. 8.

⁶⁵ M. Kaiser, 'Ausreiser und Meuterei im Dreißigjährigen Krieg', in U. Bröckling and M. Sikora (eds), *Armeen und ihre Deserteure: Vernachlässigte Kapitel einer Militärgeschichte der Neuzeit* (Göttingen, 1998), p. 60. Schennach, 'Lokale Obrigkeiten und Soldaten', p. 199.

⁶⁶ SHStAdr 10024 9119/38, p. 200.

Punishment	Number of Soldiers
Death Penalty	
Carried out by beheading	1
Carried out by hanging	3
Pardoned	11
Non-Death Penalty	
Chained (months)	4
Chained (two weeks or less)	9
Relieved of office (temporarily)	2
Relieved of office (permanently)	2
Made to pay victim's medical bills	2
Confined to quarters	2
Barred from quarters	1
Made to wear six sets of harness	3
Made to stand watch (at length)	1
Made to stand watch (at all)	3
Black mark on record	10
Made to relinquish stolen goods	38
Made to swear a purificatory oath or apologize	6

Figure 4: Table of Punishments in the Mansfeld Regiment, 1625/27.

Source: Sächsisches Staatsarchiv, Hauptstaatsarchiv Dresden, 10024 Geheimer Rat (Geheimes Archiv) Loc. 9119/38, Loc. 9739/6 and Loc. 10024 9539/5.

he stabbed his opponent from behind and ran.⁶⁷ Most of the men who were hanged had threatened the cohesion of the regiment. Hans Albrecht's body was left hanging for three days, the most severe punishment recorded in the Mansfeld Regiment: he had been one of several mutineers, but unlike the others he had shot at one of his officers and had attacked a transport boat.⁶⁸ Georg Schmaliner had been one of the ringleaders in a wage dispute.⁶⁹ Only Hans Geyer was a thief, but he was involved in a larger conspiracy.⁷⁰ In all those cases others were also involved; the men condemned were only the most prominent.

Most court cases in the Mansfeld Regiment handled quotidian disputes between soldiers or officers, and most punishments were light, such as having a 'black mark' or

⁶⁷SHStAdr 10024 9119/38, pp. 79–82.

⁶⁸SHStAdr 10024 9119/38, pp. 97–8.

⁶⁹SHStAdr 10024 9739/6, p. 34.

⁷⁰SHStAdr 10024 9739/6, pp. 95–109.

'black register' recorded. The recipients of this penalty varied from attempted deserters to Noc Münch and four other cavalymen who stole from a rider on the open road near Alessandria, robbing him of 'a mantle, a sword, a short jacket, a pair of stockings, and thirty batzen in cash'. They also had to turn the goods over to one of the lieutenant-colonels; the source does not mention returning them to their former owner.⁷¹ Most of these punishments were not physically harmful, but they could be awkward and annoying, like wearing six suits of armour. Or a man could be made to stand watch for an unusually long time. Even simply standing watch was a punishment.

One of the most important considerations when the Mansfeld Regiment punished crime was the effect of the crime or the potential punishment on the survival of the regiment. In the early seventeenth century a commander's greatest challenge and most pressing responsibility was raising troops, keeping them together and disbanding them without incident. This regiment was in a dangerous position, sitting in northern Italy while its colonel's finances collapsed. Threats to regimental cohesion or the authority of the command structure were slapped down hard: when Georg Schmaliner and Lucas Paz brought up a discrepancy between the wages they had been promised and what they were receiving, they were condemned to death after a brief trial, even though the governor of Milan was responsible for the breach of promise, not Colonel Mansfeld or his staff.⁷²

It is too simplistic to say that Saxon units were reluctant to punish crime, as Martin Schennach argued.⁷³ What they were often reluctant to punish were offences against civilians, the subject of Schennach's article. Like contemporary Sussex jurors who tended to dismiss the testimony of men outside the agricultural community, the members of Saxon units were more likely to listen to their own.⁷⁴ When the regiment could not punish criminals severely without damaging its ability to function, punishments were either light or forgone entirely. Thirty-two of the thirty-eight soldiers in this table who were told to return stolen goods were members of a single company who had stolen fabric with the connivance of their dishonest quartermaster. Their punishment was lighter than it could have been: they were told to return only cloth that they had not yet made into new clothing and that they could keep the rest.

Many military punishments involved dishonour, for example, the decimation or disbanding of regiments that had fled during battle or the tearing-up of their flags.⁷⁵ The legal authorities of the Mansfeld Regiment dishonoured its condemned when they hanged them from withered trees, as is commonly mentioned in sources written by Mansfeld officers but not in the regiment's official regulations. They were also careful to say that a soldier who had been confined to his quarters was sent back to his flag 'as an honourable soldier' when his punishment was over; he may not have been honourable while being punished. But the Mansfeld Regiment may have been reluctant to dishonour their men too often. They did not dismember their condemned, expose their dismembered body parts or mutilate them. They did not break on the wheel or flog. Every now and then an officer beat a subordinate, but in a common spurt of anger, not

⁷¹ SHStAdr 10024 9739/5, p. 49.

⁷² SHStAdr 10024 9739/6, pp. 30–5; SHStAdr 10024 9239/5, 63v.

⁷³ See Schennach, 'Lokale Obrigkeiten und Soldaten'.

⁷⁴ Herrup, *Common Peace*, p. 118.

⁷⁵ Wilson, 'Early Modern Military Justice', p. 77.

as a formal punishment. The most severe punishment recorded by this regiment was experienced by Hans Albrecht, who was hanged from a withered tree and left there for three days. The embarrassing punishments the Mansfeld Regiment employed, such as making someone wear six harnesses, requiring him to stand watch or barring him from his own quarters, might have made the recipient look ridiculous or made him annoying to his friends (since a man who has been barred from his quarters needs to find somewhere else to sleep), but most of them were not dishonouring. Dishonouring a soldier was a serious punishment because soldiers belonged to an honourable estate, more honourable than others in their own eyes.

The Mansfeld Regiment was also reluctant to torture soldiers. This finding agrees with Schennach as well as with Maron Lorenz for soldiers working for the Swedish army in Swedish-occupied northern Germany after the war. According to Lorenz, in many armies torture was reserved for the most serious crimes like espionage, treason or murder, and was not applied for everyday crimes like planning desertion.⁷⁶ This reluctance was pragmatic: soldiers were rare, valuable and hard to keep around, and those a regiment managed to retain needed to be able to do all the things their profession required.⁷⁷ Mattheus Steiner had suspects tortured in only one case.

Hans Sontag, Johnny Sunday, a foreign youth (his name in Italian was probably Giovanni Domenica), was thirteen or fourteen years old. On the night of 23 November 1626 he was asleep in bed with his older brother, the dog and soldiers from the Mansfeld Regiment including Hans Fuller and Christian Gottschalck. About midnight, the boy heard a tumult outside. When he opened the door onto heavy rain and the dog barking, a soldier named Hans Geyer threw a rock at his head. The boy began to scream.

Geyer and other soldiers had been hiding in the sheepfold. The peasants who assembled when Sunday started screaming found Geyer with three sheep; the other soldiers ran away but Geyer 'did not trust himself to leave'. It was dark: less than a quarter-moon and raining. The other soldiers were not found. Geyer went back to Fuller and Gottschalck's room and got into bed. The youth saw him do so, and said to his brother, 'This soldier Hans Geyer was often at our place, I know him well from that.' The peasants waited until morning and kept watch.

When Fuller and Gottschalck were questioned, they did not admit they had planned the theft of the sheep with Geyer but said he had been the third soldier in bed when the night began. Fuller said he and Gottschalck had hung some rice over the fire, but the host's boy had dabbed the pot full of ashes so they ate a piece of cheese instead, to which their host added 'a goblet of terrible and inferior wine'. He and Gottschalck had gone into the bedroom and undressed when Hans Geyer came in, wet to the skin and drunk. He begged Fuller to put him up, and all three lay down together. Gottschalck's testimony was almost identical, except after 'many pointed questions' he admitted that in the middle of the night he saw Geyer get out of bed, take the urine pot, urinate into it and 'because he was very thirsty, drink it again'. Geyer may have done this for medicinal reasons or may have been still so drunk he did not know what he was

⁷⁶ M. Lorenz, *Das Rad der Gewalt: Militär und Zivilbevölkerung in Norddeutschland nach dem Dreißigjährigen Krieg* (Cologne, 2007), p. 132.

⁷⁷ Lorenz, *Das Rad der Gewalt*, p. 132; A. Gilbert, 'Military and Civilian Justice in Eighteenth-Century England: An Assessment', *Journal of British Studies*, 17, 2 (1978), pp. 41–65, here p. 55.

doing. Or Gottschalck dreamt it: facing torture and on trial for his life, Geyer swore up and down he never got out of bed and certainly had not drunk his own piss.

Christian Gottschalck said Hans Fuller said their fourier had long had designs on these sheep and had wanted to send a squad of musketeers to get them. Fouriers scouted out routes and forage ahead of an army's advance; this one was recapitulating his official role for more extracurricular activities. Gottschalck also said someone named Tobias who was staying in the lieutenant's quarters said the feldwebel had sent him to the fourier with his compliments and asked for a piece of meat or a leg of mutton. Meanwhile Geyer implicated Fuller. Sunday and his brother had slept in one bed with those who plotted against them.

When Gottschalck accused officers of directing the theft, the case abruptly became more serious. This conspiracy went up to a feldwebel at least, the fourth most-senior officer in a company. 'On the sixth December 1626 in the afternoon between one and two, foreign time, the painful question was undertaken.' Hans Geyer now added detail to his earlier account. He had to stand watch that night but had left his musket in his quarters, so an officer's bodyguard lent him one. But he had been so drunk his corporal ordered him not to show up anyway. He paid another soldier three batzen to stand watch for him and walked from Samarate to Gallarate in the winter rain. Geyer named two out of three of the men he had been drinking with as people who had stolen sheep with him; the third was his corporal, who saw them planning and did not grass on them. The common soldiers, Hans Heimberger and Mattheus Bankenberg, were questioned and admitted it. All three were condemned to death. Heimberger and Blankenberg were pardoned and packed off back to their companies, but Hans Geyer was hanged from a withered tree.⁷⁸

Little distinguishes this grubby incident from the other cases on the Mansfeld Regiment's books, in which torture was not used. These soldiers were hungry. Their officers were hungry. So they stole. Blankenberger said Geyer told him, 'We want to go there and get something to cram in our mouths [*fressen*].' But this had been a conspiracy, it had been in the making for a while, and officers were involved. Torture in the regiment, as in wider early modern German society, was not a punishment but a way to get information. Mattheus Steiner may have had Hans Geyer, his accomplices and the other suspects tortured because he wanted to know how many people were in on it. Once he knew, there was little he could do, because at least two officers and a corporal either knew about the plan or were actively involved: these people were not only essential to their company's functioning, but in some cases also had a fair amount of formal power within it, and others may have been informally influential. Neither the fourier nor the feldwebel was punished.

By the end of 1626 the Mansfeld Regiment's finances were in bad shape. The Mansfelders had gone down to northern Italy from Saxony in summer 1625: the infantry had settled north-east of Milan in Busto Arsizio and Gallarate, and the cavalry near Alessandria. There they did nothing important. They had probably been kept as a reserve. The little war they had been sent to Italy to fight ended in March 1626, but Mansfeld lacked the money to dismiss his men. That winter he scrambled to find a way to pay them. As the regiment's finances fell apart, punishments got more severe.

⁷⁸SHStADr 10024 9739/6, pp. 95–109.

If a Mansfelder was put in chains, it was usually for a brief period of a few days to two weeks, but four men were sentenced to be fettered for months at a time, from eight weeks to almost four months. These cases were decided late in the regiment's lifespan, from 8 October 1626 to 11 February 1627. There would have been more complaints as autumn turned to winter, more threats of mutiny or insurrection and more hunger. At its highest recorded strength the Mansfeld Regiment's infantry numbered 2,545 men, so Mattheus Steiner probably knew the people whose torture he authorized.⁷⁹ Since only Hans Geyer was executed, he probably interacted with most of them after he had had them tortured.

IV. Conclusion

What happened to Bernard von Zwemer after he killed Ludwig von Bissing and ran? This file is incomplete. But except for Zwemer himself—who 'against the law of war and his own sworn oath' became 'a fugitive from the ... flag' he was supposed to tend—the military personnel involved in this case were committed to their law, at least at the time.⁸⁰ They made their decisions based on religion, custom, their understanding of their role as soldiers and their perception of a soldier's honour: a soldier must not allow his sword to be taken from him and may kill to prevent it; a flag-bearer keeps the embodiment of the company's legal identity in his room and may not desert; whosoever shed man's blood, by man shall his blood be shed.

The law that soldiers and officers practised was gritty and streamlined. Armies were bigger in the seventeenth century than earlier, and roles and offices within them were more differentiated, but the trials I have seen were simpler than sixteenth-century military trials. Although the judgements contained formulaic elements, the long ritualistic pronouncements included in sixteenth-century descriptions of military justice were not in evidence here.⁸¹ The practice of military justice in the early seventeenth century may also have been less religious—certainly less overtly religious. The participants mention God, but there is a sense they have been left to their own devices. Cases could last for a while, and became longer when the Mansfelders' legal team was overloaded, but trials themselves were quick, often faster than the three-day maximum Moeller notes for the sixteenth century.⁸² Military law may have been more open to common soldiers in the early seventeenth century than previously, given that soldiers sued one another so often or came before the bailiff to record their squabbles and their debts. Here we are hampered by our lack of access to sixteenth-century military legal records.

Knowledge of the profession of arms accreted slowly. Military experience made one soldier qualified to judge other soldiers without formal education, as a master in the things of war. The threat of what officers called 'inconvenience' (*Ungelegenheit*)—used for everything from tumult to grotesque mistreatment of civilians—was always present, but soldiers were necessary. When things got out of hand, concessions were made. The imperial units active during the 1630s and 1640s that Schennach observed seem to have

⁷⁹ SHStAdr 10024 9239/2, 54r–82v.

⁸⁰ SHStAdr 11237 10796.

⁸¹ Moeller, *Das Regiment der Landsknechte*, pp. 237, 239.

⁸² *Ibid.*, p. 196.

functioned similarly. A more complex social differentiation was already taking shape: muster-writers and legal personnel were a distinct category. Peter Hagendorf may have been one of them, a kind of military clerisy. Early seventeenth-century military legal personnel may have been similar to surgeons in the same companies, some of whom wrote their autopsy reports in Latin-studded German while some could not read or write. By the end of the seventeenth century, formally educated jurists served on military tribunals. In the late seventeenth and early eighteenth centuries, military justice in the German-speaking world was expanded, clarified and rationalized. The distance between superiors and subordinates seems to have been greater; fewer common soldiers, if any, served on tribunals. Corporal punishment may have been more common.⁸³ But there was a similar give-and-take in this period between the strictures of formal law and the reality of human interaction in an organization. The figures Peter Wilson has for executions in eighteenth-century German militaries are still relatively low.⁸⁴

Military law was concrete, particular and variable. We cannot isolate it from the rest of soldiers' daily lives. The historians who used changes in seventeenth-century military law as examples of the social disciplining of soldiers based this argument on a comparatively narrow range of sources that do not usually record the practice of that law. Saxon officers, common soldiers and sometimes representatives of the elector all actively took part in their 'regiment' during the early seventeenth century. Military units were dynamic communities of people with interests which coincided and conflicted, and these interests had to be managed. Early seventeenth-century soldiers were self-willed, passionate and poorly disciplined, but they were conscious of their law and deliberately took part in its execution.

Abstract

Some historians have proposed that common soldiers in various parts of Europe lost a previous judicial independence around 1600 and have linked this development to a contemporary increase in discipline and in control over them. Meanwhile, historians of the Thirty Years War rarely mention military justice at all or depict this war as a time when military justice did not function. In contrast, this article examines the ordinary practice of military law during the Thirty Years War through a close reading of low-level legal paperwork generated by electoral Saxon units. Although military justice was not egalitarian, common soldiers in these units took an active role in the administration of justice, even in the early seventeenth century. The practice of law in early seventeenth-century electoral Saxon military units was similar to pre-existing structures of military justice, but subtly modified.

Tel Aviv University, Israel
luciasdan@gmail.com

⁸³Wilson, 'Early Modern Military Justice', pp. 67–8.

⁸⁴*Ibid.*, pp. 73–5.